

Smt. Shashi Lata Tiwari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 October 2025 · Writ-C No. 32847 of 2025 · **Writ disposed; objection to be decided under Clause 6.8 after deposit and hearing.**

HEADNOTE

Where it is unclear that assessment procedure was followed and the consumer alleges no hearing before an electricity demand, the writ is disposed of by relegating the consumer to the Assessing Officer under Clause 6.8 of the U.P. Electricity Supply Code, 2005, to decide the objection after a specified deposit, confrontation with adverse material, and personal hearing.

FACTUAL SUMMARY

The petitioner challenged a Recovery Certificate dated 14 July 2025 seeking recovery of Rs 1,07,144 towards electricity dues. She claimed that no opportunity of hearing was given before the demand was created. Counsel for the petitioner, the distribution licensee, and the State were heard. The Court found it unclear whether the assessment procedure had been fully complied with, and declined to keep the writ pending or call for a counter affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

hearing-on-assessment-objection

HOLDING

Where compliance with assessment procedure is unclear and the consumer alleges no opportunity of hearing before the demand, the writ is disposed of directing that, subject to deposit of a specified sum towards the disputed demand and filing of an objection, the Assessing Officer shall decide the objection by a reasoned speaking order under Clause 6.8 of the U.P. Electricity Supply Code, 2005, after confronting the consumer with all adverse material and granting personal hearing. ¶ 4-5

PRINCIPLE TAGS

opportunity-before-final-assessment Where it is unclear that assessment procedure was followed and the consumer alleges no hearing before an electricity demand, the writ is disposed of by relegating the consumer to the Assessing Officer under Clause 6.8 of the U.P.. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ASSESSMENT PROCEDURE HAD BEEN FULLY COMPLIED WITH BEFORE THE DEMAND

¶ 3

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 14.07.2025 ON MERITS

¶ 4-5